

IN THE JUSTICE COURT OF LAFAYETTE COUNTY MISSISSIPPI

LAFAYETTE COUNTY, MS PROSECUTION

VS

CAUSE NO. 9290609

9290610

MATTHEW REARDON

DEFENDANT

Motion to Dismiss with Prejudice or in the Alternative to Compel Production of Evidence

Comes now before this court, Matthew Reardon, your Defendant, and respectfully moves this court to Dismiss the criminal charges brought forth against him or in the alternative to compel immediate cooperation from the prosecution in regards to the items laid out in his Subpoena Duces Tecum. Movant would show good reason and completely legitimate grounds warranting either an immediate dismissal with prejudice or compelling the prosecutor of Lafayette County to comply, and would hereby state before this court the following facts and reasons which warrant such relief as sought:

- 1) That on January 21st 2021 Defendant filed with this court a Motion to Dismiss or in the alternative to transfer. In said Motion, Defendant stated numerous violations that had been aggrieved by Defendant at the hands of Deputies and Officials acting under color of law along with demonstrating that he came to the Sheriff's Department with a particular grievance for the Sheriff after the Sheriff read and ignored emails sent from Defendant. Motion filed with this court is attached as Exhibit A
- 2) That Defendant attempted to communicate with Lafayette County General Counsel David O'Donnell on January 19th, 2021 seeking answer as to if Lafayette County was going to cooperate in Defendant's discovery requests or if Defendant should proceed with obtaining that which he was seeking via Subpoena Duces Tecum an effort of good faith in order to avoid further delay. Defendant received a "Read Receipt" from the County Attorney, however and to no surprise received no response. Defendant knew at that point that he would have to get the evidence in

question which he was seeking via nothing shy of a Subpoena Duces Tecum in order to afford Defendant a fair, meaningful, and non-biased hearing. Otherwise Defendant stands to not receive a fair trial and as a result would most certainly need a transfer of venue to an outside jurisdiction.

- 3) That on January 27th, 2021 Defendant's had a Subpoena Duces Tecum properly served on Lafayette County Chancery Clerk Sherry Wall due to Attorney O'Donnell showing a refusal to cooperate by refusing to respond. On February 4, 2021 the Prosecutor for Lafayette County, Bela J Chain responded motion to quash Defendant's Subpoena Duces Tecum. Executed Subpoena Duces Tecum attached as Exhibit B and Prosecution's Motion to Quash is attached as Exhibit C.
- 4) That in the production of what the prosecution inferred to be discovery material requested, it overlooked several requests of Defendant, further inferring that the production of such WOULD cause irreparable harm on the Lafayette County Sheriff's Department/Detention Center. However what the Prosecution fails to consider is the irreparable harm aggrieved upon Defendant by the malice acts of this department in 2017 and further extended beyond that. Defendant agrees in part that indeed the evidence sought stands a chance in aggrieving irreparable harm if they do indeed further demonstrate intentional, wrongful, and immoral acts aggrieved upon Defendant at the hands of officers and officials acting under color of law. However, the particular camera footage Defendant seeks does not expose the department to any security risks and is completely relevant to Defendant's cause that he stands trial for as Defendant reassurts that this arrest was unwarranted and stemmed from defendant being "Targeted" by this department by acts and ways meant to hinder and burden defendant through intimidation and fear tactics in what easily shows to be an ongoing conspiracy to cover up and rid extreme liability that Lafayette County, It's Sheriff's Department and certain employees, along with the State of Mississippi knowingly created in 2017, and in doing such have blatantly refused to afford Defendant the equal protections under the laws of the state and federal despite repetitive attempts attempting to get this department to do so.
- 5) A security camera is mounted almost directly in front of Sheriff East's Parking Spot which offers additional vantage points as clear misconduct is observed on the camera footage shown and provided by the Prosecutor.

Defendant had an audio recorder in his front shirt pocket which captured audio up until he was thrown on the ground. This is matched up with the vantage point provided and at no point did Defendant EVER tell Deputy Courtney Dixon "No" during the brief exchange, yet Deputy Dixon and Deputy Tidwell both attest that Defendant used that very word not once, not twice, but three separate times. Defendant attaches a DVD of this arrest with audio and demonstrating different areas of serious concern. What is it that the Prosecutor wants so badly to shield with him not releasing the camera closest to the action? There are numerous erroneous acts in the camera footage which further show that this was an event of celebration to the Sheriff's Department to further destroy a man that simply sought out equal protections of the law as he was steadily being victimized through bizarre acts of his ex which this department has continued to allow, and through allowing it condoned it especially when it continued refusing to answer the cry for help and further sought to arrest the defendant yet again who needed answers and accountability for such refusal to act.

- 6) Defendant assumed even that would be a fight as the prosecutor demonstrated this in his motion to quash Subpoena Duces Tecum. Although the Lafayette County Prosecutor did respond in a timely manner with his motion as required by the 10-Day Window specified in the Subpoena, the information the Prosecutor provided was selectively chosen and came nowhere in the vicinity of complying with the requests that Defendant had sought, which the lack of such would be prejudicial to Defendant, further denying him a fair and non-biased hearing, further denying movant the equal protections of the laws and the rights afforded to all accused to in effectively proving that the arrest in question was completely unwarranted and further amounted to excessive force being used by the arresting officers (Courtney Dixon and Ethan Tidwell), what would appear by face to be an attempt by Deputy Dixon to destroy property of Defendant which contained evidence, Deputy Ethan Tidwell grabbing what appears on camera to be Defendant's phone and walking off to the side away from the group before quickly passing device several minutes later to Lt Omar Ahmed in a conspicuous way. A completely outrageous unwarranted and illegal search of Defendant's personal vehicle and belongings in it by what would appear to be at least 6 sheriff's deputies within fifteen to twenty minutes of Defendant's arrest. Defendant feels that this was

done with ill intent and was a clear violation of Defendant's 4th Amendment Rights regardless of what excuse the Lafayette County Sheriff's Department gives in answer.

WHEREFORE ALL PREMISES CONSIDERED

Defendant hereby requests that the Prosecutions motion to quash be outright denied or be denied at a later date after a hearing to determine if grounds to exist to compel the prosecution's production of the requested Items in his executed Subpoena Duces Tecum. Defendant is in approval of a teleconference between the assigned judge and prosecution, or in person whichever is preferable and can be granted in the quickest way. Otherwise Defendant hereby requests this court to dismiss the charges or for the prosecutor to withdraw charges on its own due to the facts surrounding the matter and newly ascertained in order to avoid the burden and expenses of trial. Defendant also hereby attaches and hereby serves a Motion of Discovery upon Lafayette County to obtain any and all evidence that would fall under the guidelines of discovery as outlined in MRCrP Rule 17 including a list of any witnesses it plans to call upon and any evidence it intends to produce at trial.

Defendant also prays for any other relief be it special or general, for which he may be entitled

RESPECTFULLY SUBMITTED THIS 9TH DAY OF FEBRUARY 2021,



Matthew Oliver Reardon
Pro Se Movant/Defendant
117 CR 401
Oxford, MS 38655
matt@mattreardon.com
662-812-1613

**LAFAYETTE COUNTY
FILED**

FEB 04 2020

WITNESS MY SIGNATURE AND OFFICIAL SEAL OF OFFICE THIS 9th DAY OF FEBRUARY, 2020

Jill Carwyle
CLERK OF SUPERIOR COURT
BY  **D.C.**

b. narrative reports of the officer which also identify witnesses to the events which lead to the criminal charges.

c. copies of photographs which may be used by the prosecution at the criminal trial.

So submitted this the 4th day of February, 2021.


Bela J Chain III, County Attorney

CERTIFICATE OF SERVICE

I, Bela J Chain III, Lafayette County Attorney, do hereby certify that I have this day mailed by United States mail, postage pre-paid, a true and correct copy of the above and foregoing motion to:

Matthew Reardon
117 CR 401
Oxford, MS 38655

So certified on this the 4th day of February, 2021.


Bela J Chain III

LAFAYETTE COUNTY
FILED

FEB 04 2020

Jill Carwyle
JUSTICE COURT CLERK
BY  D.C.